



## EXHIBIT 37

**UNITED STATES INTERNATIONAL TRADE COMMISSION  
WASHINGTON, D.C.**

**In the Matter of**

CERTAIN VERTICAL POWER DELIVERY  
SYSTEMS, COMPONENTS THEREOF, AND  
COMPUTING SYSTEMS CONTAINING THE  
SAME

**Docket No.** \_\_\_\_\_

**DECLARATION OF PHIL DAVIES**

I, Phil Davies, do hereby declare as follows:

1. I am the Corporate Vice President, Global Sales and Marketing at Vicor Corporation. I have held this position since 2011. I manage and oversee Vicor's four business market segments (high-performance computing or HPC, automotive, industrial, and aerospace & defense).

2. I submit this declaration in support of the Complaint filed by Vicor under Section 337 of the Tariff Act of 1930. The facts stated in this declaration have been gathered and assembled by me or by knowledgeable and authorized Vicor employees, consultants, and counsel, with my input and direction, and I am informed and, as I understand it, believe that the facts stated herein are true.

3. In my capacity as Corporate Vice President, Global Sales and Marketing at Vicor Corporation, I manage a global team of regional sales managers, account managers, and field application engineers (FAEs), all of whom are responsible for selling and providing technical support to our customers worldwide. I and my team work closely with Vicor's distributors, customers, and customer suppliers and contract manufacturers, on the design, qualification, and assembly of products that incorporate Vicor's products. Because Vicor is a leading innovator, developer, and manufacturer of vertical power delivery (VPD) solutions to the high performance computing market, my sales, FAE and marketing team closely monitors the competitive landscape of other power module suppliers for the development and sale of VPD modules, including which

companies are developing or supplying competing modules, the technical characteristics of those modules, where they are being manufactured, and which computing systems they are being incorporated into.

4. Through these responsibilities, I often receive and/or investigate information about competing companies' products that Vicor's customers may incorporate into their products. Through this work and by relying on my decades of experience in this field, I was able to obtain evidence (detailed below) indicating that Delta, Infineon, Luxshare, MPS, and Flex have each imported into the United States, sold for importation, and/or sold after importation at least one infringing VPD module on at least one occasion. I also obtained evidence (detailed below) indicating that Celestica, Quanta, and Foxconn have each imported into the United States, sold for importation, and/or sold after importation infringing VPD computing systems (TPU accelerators) that contain one or more infringing power modules.

5. VPD modules of the type at issue in this Complaint are not off-the-shelf components that can be purchased through public distribution channels. They are highly customized for powering a specific AI processor, and are developed in close collaboration into an end customer's product (here, Google) under confidentiality agreements between the power vendor and the end customer and supplied through controlled, company-to-company procurement channels. As a result, many details of the VPD modules, including some part numbers, are not publicly available. However, the existence of a particular module in a particular system, the identity of the vendor that manufactures it, and the country in which it was manufactured are information that, in my experience, can be obtained through direct engagement with participants in the relevant supply chains, attendance at industry events and conferences, where prototypes or demonstration units are displayed, technical papers and presentations are openly given and monitoring of marketing promotion materials and other public filings.

6. Attached to the Complaint as Exhibit 7 is an October 2025 photograph, and a

cropped and enlarged version of that same photograph, taken at the Open Compute Project Global Summit (“OCP Summit”) in San Jose, California. The photograph shows a Delta VPD Module on display by Delta in the United States. Based on my industry and personal knowledge, Delta does not manufacture power modules in the United States, which confirms to me that the Delta module present at the OCP Summit was imported.

7. Attached to the Complaint as Exhibit 10 is a screenshot of an online video of an Infineon VPD module display (TDM24545S) at the March 2026 Applied Power Electronics Conference (“APEC”) in San Antonio, Texas, in the United States. Based on my industry knowledge and publicly available information, the Infineon TDM24545S VPD module present at APEC was imported. Infineon manufactures the TDM24545S at one of its backend and module-assembly facilities, which are all located outside the United States, including in Melaka (Malaysia), which Infineon describes as the “largest Backend Site and Center of Competence in Infineon”; Batam (Indonesia); Wuxi (China); Cegléd (Hungary); and Singapore.<sup>1</sup> I am aware of U.S. located Infineon sites.<sup>2</sup> But it is my understanding and belief based on my experience and industry knowledge that none of these facilities provide the backend module-assembly and chip-embedding processes required to produce the TDM24545S. I am therefore not aware of any Infineon facility in the United States that is capable of manufacturing the TDM24545S or any similar chip-embedded power module, which confirms to me that the Infineon VPD module present at APEC was manufactured outside the United States and imported.

8. Attached to the Complaint as Exhibit 13 are October 2025 photographs taken at the OCP Summit in San Jose, California. The photographs show a Luxshare VPD Module on display

<sup>1</sup> *Infineon in Melaka*, Infineon Technologies, <https://www.infineon.com/careers/our-locations/melaka> (last visited Aug. 21, 2026); *Infineon in Batam*, Infineon Technologies, <https://www.infineon.com/careers/our-locations/batam> (last visited Aug. 21, 2026); *Infineon in Wuxi*, Infineon Technologies, <https://www.infineon.com/careers/our-locations/wuxi> (last visited Aug. 21, 2026); *Infineon Hungary*, Infineon Technologies, <https://www.infineon.com/regional/hungary/en> (last visited Aug. 21, 2026); *Infineon Singapore*, Infineon Technologies, <https://www.infineon.com/regional/singapore> (last visited Aug. 21, 2026).

<sup>2</sup> *Career Worldwide*, Infineon Technologies, <https://www.infineon.com/careers/our-locations> (last visited Aug. 21, 2026).

by Luxshare in the United States. Based on my industry knowledge and Luxshare's prior public disclosures in *Certain Power Converters, Circuit Board Assemblies, and Computing Systems Containing The Same*, Inv. No. 337-1484, First Amended Response of Luxshare Precision Industry Co., Ltd. and Dongguan Luxshare Technology Co., Ltd to the Complaint and Notice of Investigation EDIS Doc. ID 882010, at ¶76 ("Luxshare admits it has no production facilities in the United States."), I am not aware of the existence of any Luxshare manufacturing facilities in the United States, which leads me to believe that the Luxshare module present at the OCP Summit was imported.

9. Attached to the Complaint as Exhibit 15 are photographs of an MPS VPD module on display at the March 2026 Applied Power Electronics Conference ("APEC") in San Antonio, Texas. The photographs show an MPS MPC2M110-L VPD module on display. Based on my industry knowledge and publicly available information, the MPS MPC2M110-L VPD module present at APEC was imported into the United States. MPS describes itself as "a fabless global company,"<sup>3</sup> which means that it does not own or operate any semiconductor fabrication, assembly, or packaging facilities. According to MPS's SEC Form 10-K for fiscal year 2023, MPS's entire production chain is performed outside the United States: silicon wafers are manufactured by third-party foundries in China, Taiwan, South Korea, and Singapore; wafer sorting is conducted at facilities in China, Taiwan, and Singapore; assembly and packaging are performed by independent

<sup>3</sup> Monolithic Power Sys., Inc., Annual Report (Form 10-K), at 1 (Feb. 29, 2024), [https://media.monolithicpower.com/mps\\_cms\\_document/m/o/monolithic\\_power\\_systems\\_10-k.pdf](https://media.monolithicpower.com/mps_cms_document/m/o/monolithic_power_systems_10-k.pdf); Press Release, Monolithic Power Sys., Inc., *Monolithic Power Systems to Report Second Quarter 2026 Results on July 30, 2026* (July 14, 2026), [https://www.monolithicpower.com/media/investor-relations/press-releases/MPS\\_Q2\\_2026\\_Earnings\\_Date\\_Announcement.pdf?srsltid=AfmBOooORDMqXE7dkMUoSbawzS0ih5M0TOBPoXnuBYwC-hq5qx3yFoQ](https://www.monolithicpower.com/media/investor-relations/press-releases/MPS_Q2_2026_Earnings_Date_Announcement.pdf?srsltid=AfmBOooORDMqXE7dkMUoSbawzS0ih5M0TOBPoXnuBYwC-hq5qx3yFoQ); Press Release, Monolithic Power Sys., Inc., *Monolithic Power Systems to Report Third Quarter 2024 Results on October 30, 2024* (Oct. 15, 2024), [https://www.monolithicpower.com/media/investor-relations/press-releases/MPS\\_Q3\\_2024\\_Earnings\\_Date\\_Announcement.pdf?srsltid=AfmBOooHxaK5j6CYJMeZnFzSrBlM-OQIP4oldqXoXdMfknk-ZnT-OFK3](https://www.monolithicpower.com/media/investor-relations/press-releases/MPS_Q3_2024_Earnings_Date_Announcement.pdf?srsltid=AfmBOooHxaK5j6CYJMeZnFzSrBlM-OQIP4oldqXoXdMfknk-ZnT-OFK3); Press Release, Monolithic Power Sys., Inc., *Monolithic Power Systems Announces Second Quarter 2026 Dividend* (June 12, 2026), [https://www.monolithicpower.com/media/investor-relations/press-releases/99.1\\_Q2\\_2026\\_Dividend\\_Announcement\\_Press\\_Release.pdf?srsltid=AfmBOorSH1lvOWzOi2XrQliAdEe51DWn-g69KZ0\\_VWOFbS\\_ja0X9XTP](https://www.monolithicpower.com/media/investor-relations/press-releases/99.1_Q2_2026_Dividend_Announcement_Press_Release.pdf?srsltid=AfmBOorSH1lvOWzOi2XrQliAdEe51DWn-g69KZ0_VWOFbS_ja0X9XTP).

subcontractors; and final testing is conducted at MPS's facility in Chengdu, China, or by test service providers:<sup>4</sup>

### **Manufacturing**

We utilize a fabless business model, working with third parties to manufacture and assemble our ICs. This fabless approach allows us to focus our engineering and design resources on our strengths and to reduce our fixed costs and capital expenditures. In contrast to many fabless semiconductor companies, which utilize standard process technologies and design rules established by their foundry partners, we have developed our own proprietary process and packaging technologies and collaborate with our foundry partners to install our technologies on their equipment in their facilities for use on our behalf. This close collaboration and control over the manufacturing process has historically resulted in favorable yields and product performance for our ICs.

We currently contract with several suppliers to manufacture our wafers in foundries located in China, Taiwan, South Korea and Singapore. Once our silicon wafers have been produced, they are shipped to the facilities in China, Taiwan, and Singapore that we and our partners utilize for wafer sort, which is a testing process performed to identify non-functioning dies. Our semiconductor products are then assembled and packaged by independent subcontractors in China, Taiwan and Malaysia. The assembled ICs are then sent for final testing to the facilities in China, Taiwan and Malaysia that we and our partners utilize prior to shipping to our customers.

The manufacturing facilities we utilize in Asia enable us to benefit from shorter manufacturing cycle times and lower labor and overhead costs. We have expanded our product testing capabilities in these facilities and are able to take advantage of the rich pool of local engineering talent to expand our manufacturing support and engineering operations.

10. Attached to the Complaint as Confidential Exhibit 17C is an email summarizing a Vicor employee's May 2024 visit to Celestica Thailand. The email recounts that Celestica Thailand was supplying Google TPuv5, using Flex VPD Modules. Based on my industry knowledge, I conclude that if Celestica Thailand was doing the manufacturing, the Flex VPD Modules were necessarily present in Thailand. Additionally, based on publicly available information from Flex's

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<sup>4</sup> Monolithic Power Sys., Inc., Annual Report (Form 10-K), at 5 (Feb. 29, 2024), available at [https://media.monolithicpower.com/mps\\_cms\\_document/m/o/monolithic\\_power\\_systems\\_10-k.pdf](https://media.monolithicpower.com/mps_cms_document/m/o/monolithic_power_systems_10-k.pdf).

own website, Flex's VPD modules are part of its power-module business unit (Flex Power Modules), which is headquartered in Kalmar, Sweden, with a design center and manufacturing site in Shanghai, China, and additional production facilities in Penang, Malaysia, and Althofen, Austria.<sup>5</sup> I am not aware of any Flex facility in the United States that manufactures power modules generally or VPD power modules specifically, which confirms that the Flex VPD Modules used in Google TPUv5 systems were manufactured outside the United States and imported.

11. Attached to the Complaint as Confidential Exhibit 22C is an email [REDACTED] identifying [REDACTED] current Google TPUv7 contract manufacturers, including Quanta, Foxconn, Celestica, and Flex. Based on my industry knowledge, I am aware that Quanta, Foxconn, Celestica, and Flex also participate in supply chains for Google TPUv6 and Google TPUv5.

12. Based on my industry knowledge and experience, I am aware that the VPD modules identified in this declaration that are used in Google TPU computing systems, including the Delta (containing Infineon multiphase modules), Luxshare, MPS, and Flex VPD modules, are manufactured by the respective power vendors at facilities located outside the United States, as described in paragraphs 5 through 9 above. These modules are then supplied to contract manufacturers such as Quanta, Foxconn, and Celestica for incorporation into computing systems that are imported into the United States.

13. Based on my industry knowledge, I am aware that Google TPUv7, Google TPUv6, and Google TPUv5 all rely upon VPD modules that use a gearbox and interdigitated components. Though the components may differ slightly, on information and belief the fundamental elements are necessarily the same because otherwise they would not be compatible with the Google TPU systems.

14. Based on my industry knowledge and experience, the power vendors' module-

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<sup>5</sup> *Vertical Power Delivery (VPD) Solutions*, Flex, <https://flex.com/products/power-modules/vertical-power-delivery> (last visited Aug. 21, 2026); *Flex Power Modules*, Flex, <https://flex.com/products/power-modules> (last visited Aug. 21, 2026).

assembly sites are specialized, qualified facilities whose location is determined by proximity to the semiconductor component supply chain concentrated in East and Southeast Asia. I am also aware that, as of the date of this declaration, Celestica, Quanta, and Foxconn conduct substantial manufacturing of Google TPU computing systems at facilities outside the United States, including in Asia, Mexico and Canada, and that such systems are imported to the United States for use by Google.

I declare under penalty of perjury that the foregoing is true and correct, as I understand it, in all material aspects.

Executed on September 2, 2026 in Andover, Massachusetts.



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Phil Davies  
Corporate Vice President,  
Global Sales and Marketing  
Vicor Corporation